

26PSCV00925 26PSCV00925

County: los-angeles

Division: Civil Law and Motion

Department: 6

Hearing date: 2026-07-29

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Case Number: 26PSCV00925 Hearing Date: July 29, 2026 Dept: 6

CASE NAME: Courtney Smith, et al. v. The Gabriel Apartments

1. Defendant Prime Residential Management GP, LLC dba The Gabriel Apartments' Special Motion to Strike Claims in the Complaint Pursuant to Code of Civil Procedure § 425.16 (Anti-SLAPP);
2. Defendant Prime Residential Management GP, LLC dba The Gabriel Apartments' Demurrer to Plaintiffs' Complaint; and
3. Defendant Prime Residential Management GP, LLC dba The Gabriel Apartments' Motion to Strike Plaintiffs' Complaint

TENTATIVE RULING

The Court DENIES Defendant Prime Residential Management GP, LLC dba The Gabriel Apartments' Special Motion to Strike Claims in the Complaint Pursuant to Code of Civil Procedure § 425.16 (Anti-SLAPP).

The Court SUSTAINS Defendant Prime Residential Management GP, LLC dba The Gabriel Apartments' Demurrer to Plaintiff Jaylenn Leeann Cortes' Fourth Cause of Action for intentional infliction of emotional distress without leave to amend. The Court OVERRULES Defendant Prime Residential Management GP, LLC dba The Gabriel Apartments' Demurrer to Plaintiffs' Complaint in all other respects.

The Court DENIES Defendant Prime Residential Management GP, LLC dba The Gabriel Apartments' Motion to Strike Plaintiffs' Complaint.

Defendant Prime Residential Management GP, LLC dba The Gabriel Apartments is ordered to file an Answer to the Complaint within 10 calendar days.

Plaintiffs are ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a wrongful eviction case. On March 12, 2026, plaintiffs Courtney Smith (Courtney) and Jaylenn Leeann Cortes (Jaylenn) (collectively, Plaintiffs) filed this action against defendant Prime Residential Management GP, LLC dba The Gabriel

Apartments (erroneously sued as The Gabriel Apartments) and Does 1 through 20, alleging causes of action for violation or Civil Code § 789.3 (unlawful lockout), wrongful eviction, breach of covenant of quiet enjoyment (Civil Code § 1927), intentional infliction of emotional distress, conversion, unfair business practices (Bus. & Prof. Code § 17200), negligence, and violation of Pomona Rent Stabilization Ordinance (Just Cause Eviction Protections).

PROCEDURAL BACKGROUND – Anti-SLAPP Motion

On June 22, 2026, Defendant moved to strike claims in the Complaint under Code of Civil Procedure section 425.16. On July 15, 2026, Plaintiff opposed Defendant's Anti-SLAPP Motion. On July 22, 2026, Defendant replied to Plaintiff's Opposition.

LEGAL STANDARD – Anti-SLAPP Motion

Code of Civil Procedure section 425.16 permits the court to strike causes of action arising from an act in furtherance of the defendant's right of free speech or petition, unless the plaintiff establishes that there is a probability that the plaintiff will prevail on the claim. (Code Civ. Proc., § 425.16.)

"The anti-SLAPP procedures are designed to shield a defendant's constitutionally protected conduct from the undue burden of frivolous litigation." (Baral v. Schnitt (2016) 1 Cal.5th 376, 393 (Baral), *italics in original*.) "The anti-SLAPP statute does not insulate defendants from any liability for claims arising from the protected rights of petition or speech. It only provides a procedure for weeding out, at an early stage, meritless claims arising from protected activity." (Id. at p. 384, *italics in original*.)

"Resolution of an anti-SLAPP motion involves two steps. First, the defendant must establish that the challenged claim arises from activity protected by section 425.16. If the defendant makes the required showing, the burden shifts to the plaintiff to demonstrate the merit of the claim by establishing a probability of success." (Baral, *supra*, 1 Cal.5th at p. 384, citation omitted.) The California Supreme Court has "described this second step as a 'summary-judgment-like procedure.' The court does not weigh evidence or resolve conflicting factual claims. Its inquiry is limited to whether the plaintiff has stated a legally sufficient claim and made a *prima facie* factual showing sufficient to sustain a favorable judgment. It accepts the plaintiff's evidence as true, and evaluates the defendant's showing only to determine if it defeats the plaintiff's claim as a matter of law. '[C]laims with the requisite minimal merit may proceed.'" (Id. at pp. 384-385, internal citations omitted.)

Where a cause of action is predicated on both protected and unprotected activity, the court may strike those parts predicated on protected activity, even if the moving party sought to strike the entire cause of action. (Bonni v. St. Joseph Health System (2021) 11 Cal.5th 995, 1011 (Bonni).) Allegations that are merely incidental and provide context without a right to recovery are not subject to the anti-SLAPP statute. (Id. at p. 1012.)

DISCUSSION – Anti-SLAPP Motion

Timeliness

Code of Civil Procedure section 425.16, subdivision (f), requires that a special motion to strike be filed within 60 days of service of the complaint, or later with court permission. (Code Civ. Proc., § 425.16, subd. (f).) Defendant's Anti-SLAPP Motion was filed less than 60 days of service of the Complaint, and is therefore timely. (See *ibid.*; Proof of Service (5/21/26).)

Prong 1: Protected Activity – Summary of Arguments

Code of Civil Procedure section 425.16, subdivision (e), defines protected activity as, "(1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive,

or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.” (Code Civ. Proc., § 425.16, subd. (e).)

Defendant contends that each of the eight challenged causes of action arises from activity protected under Code of Civil Procedure section 425.16, subdivisions (e)(1)–(2) and (4). Defendant argues the gravamen of the Complaint is its communications concerning the lawful recovery of the unit following the tenant’s death, specifically management’s confrontation with Plaintiff, its statement that no one was permitted to remain, its warning that it would contact law enforcement, and its ensuing call to police. Defendant contends these statements and its communications with responding officers are tethered to anticipated or ongoing official action and therefore fall within the categories of statements made before or in connection with an official proceeding, as well as conduct in furtherance of petitioning. Defendant maintains that it had the right to call law enforcement and to inform the occupants that no one could remain, and that the anti-SLAPP statute is to be construed broadly.

In opposition, Plaintiffs contends that their claims arise not from protected speech or petitioning but from unprotected self-help lockout conduct, i.e., physically excluding them from the residence, removing the access fob, retaining their personal property, and bypassing statutory eviction procedures. Plaintiffs argue that a claim does not arise from protected activity merely because it was filed after, was triggered by, or references such activity, and that the Court must focus on the specific acts supplying the basis for liability rather than the label of the claim. Plaintiffs contend the police call is at most part of the factual sequence or a means by which the lockout was carried out, not the injury-producing wrong itself, and that Defendant’s contrary position would let any landlord immunize a self-help eviction by placing a phone call to police. Plaintiffs further argue that Defendant has advanced only a wholesale, overbroad characterization of all claims as arising from protected communications without the allegation-by-allegation showing required to identify which protected acts supply the elements of each claim. Plaintiffs add that the conversion claim in particular rests on continued dominion over their property and refusal to return it after a post-lockout demand cannot be recast as petitioning activity.

In reply, Defendant argues that Plaintiffs’ effort to recast Defendant’s conduct as unprotected “self-help” fails because the gravamen of every claim remains its communicative conduct, i.e., the confrontation, statements about removal, and the call to law enforcement after the tenant’s death, which are protected activities. Defendant argues those statements were made in anticipation of official police intervention, that Code of Civil Procedure section 425.16, subdivisions (e)(1) to (e)(2), broadly covers participation in official proceedings with no public issue requirement, and that Plaintiffs cited no contrary authority.

Prong 1: Protected Activity – Analysis

The Court finds Defendant fails to satisfy prong one of the Anti-SLAPP analysis. “At the first step, the moving defendant bears the burden of identifying all allegations of protected activity, and the claims for relief supported by them.” (Baral, supra, 1 Cal.5th at p. 398.) “Analysis of an anti-SLAPP motion is not confined to evaluating whether an entire cause of action, as pleaded by the plaintiff, arises from protected activity or has merit. Instead, courts should analyze each claim for relief — each act or set of acts supplying a basis for relief, of which there may be several in a single pleaded cause of action — to determine whether the acts are protected and, if so, whether the claim they give rise to has the requisite degree of merit to survive the motion. [Citation.]” (Bonni, supra, 11 Cal.5th at p. 1010.) “If a cause of action contains multiple claims and a moving party fails to identify how the speech or conduct underlying some of those claims is protected activity, it will not carry its first-step burden as to those claims.” (Id. at p. 1011.) Plaintiffs correctly note that Defendant failed to identify the specific protected allegations supplying each claim, but instead lumps all eight claims into a single gravamen and challenges them wholesale. (See Anti-SLAPP Motion, 1:21-3:21.) Defendant’s failure to properly identify the specific protected allegations supplying each claim is a sufficient basis in and of itself for denying Defendant’s Anti-SLAPP Motion. (See Baral, supra, 1 Cal.5th at p. 398; Bonni, supra, 11 Cal.5th at p. 1011.)

Moreover, the Court also finds that the underlying allegations do not arise from protected activity and are at most incidental to Plaintiff’s claims. “[T]he mere fact an action was filed after protected activity took place does not mean it arose from that activity.” (City of Cotati v. Cashman (2002) 29 Cal.4th 69, 76-77 (Cotati); see Navellier v. Sletten (2002) 29 Cal.4th 82, 89 (Navellier).) “That a cause of action arguably may have been triggered by protected activity does not entail that it is one arising from such.” (Cotati, supra, 29 Cal.4th at p. 78; see Navellier, supra, 29 Cal.4th at p. 89.) “[T]he statutory phrase

'cause of action ... arising from' means simply that the defendant's act underlying the plaintiff's cause of action must itself have been an act in furtherance of the right of petition or free speech. [Citation]." (Cotati, supra, 29 Cal.4th at p. 78, italics in original; see Navellier, supra, 29 Cal.4th at p. 90.)

Here, the police call preceding the lawsuit is at most incidental to Plaintiff's claim. (Compl., ¶ 11; see Baral, supra, 1 Cal.5th at p. 394 ["Assertions that are 'merely incidental' or 'collateral' are not subject to section 425.16. [Citations]. Allegations of protected activity that merely provide context, without supporting a claim for recovery, cannot be stricken under the anti-SLAPP statute"]; Bonni, supra, 11 Cal.5th at p. 1012 [quoting same portion of Baral].)

Furthermore, "[t]erminating a tenancy or removing a property from the rental market are not activities taken in furtherance of the constitutional rights of petition or free speech." [Citation]." (Moriarty v. Laramar Mgmt. Corp. (2014) 224 Cal.App.4th 125, 136 (Moriarty).) "[A] tenant's complaint against a landlord filed after ... the filing of a complaint for unlawful detainer does not arise from those particular activities if the gravamen of the tenant's complaint challenges the decision to terminate the tenancy or other conduct in connection with the termination apart from the ... filing of an unlawful detainer complaint. [Citations.]" (Noon v. Fuentes (2025) 116 Cal.App.5th 651, 660 (Noon).) "'If a tenant is forcibly removed from premises without judicial process, such tenant can sue for wrongful eviction' and obtain damages. [Citation.]" (Id. at p. 661.)

The Noon case is directly on point. In Noon, a landlord evicted the tenants without notice and later filed an anti-SLAPP motion to strike their wrongful eviction claim and other related claims as arising from the landlord's prosecution of an unlawful detainer eviction. The Court of Appeal reversed the grant of the anti-SLAPP motion, holding that the conduct was not protected because the gravamen of the tenants' claims was the landlord's improper termination of their tenancies, and the related eviction and communications with the sheriff were "merely one step leading to some different act for which liability is asserted." (Noon, supra, 116 Cal.App.5th at pp. 661-662, internal quotation marks omitted.) Here, the Complaint does not even allege that Defendant prosecuted an unlawful detainer action, but instead called the police to remove Plaintiffs. (Compl., ¶ 11.) It stands to reason that if prosecuting an unlawful detainer action does not protect against Plaintiff's eviction claims, Defendant's police call surely does not protect Defendant's conduct.

The Complaint otherwise alleges sufficient facts showing non-speech conduct to support Plaintiff's claims, such as removing the access fob and denying entry, no unlawful detainer process, and retention of Plaintiff's belongings despite a demand for their return after the parties' confrontation and the police's subsequent removal of Plaintiff. (Compl., ¶¶ 11-12, 21.)[1] The allegations concerning law enforcement are merely incidental to the real issue here, i.e., Defendant's allegedly wrongful removal of Plaintiffs from the property and the wrongful retention of their property. (Compl., ¶ 11; see Baral, supra, 1 Cal.5th at p. 394; ; Bonni, supra, 11 Cal.5th at p. 1012.)

Finally, Defendant's argument that Plaintiffs conceding the claims are mixed is not well taken. Plaintiff's statement that the Complaint is a mixed pleading simply supported their argument that Defendant failed to carry its burden of identifying protected allegations, not to concede that the protected allegations supply any claim for relief. (See Opp., 9:8-24; Baral, supra, 1 Cal.5th at p. 398; Bonni, supra, 11 Cal.5th at p. 1011.)

Based on the foregoing, the Court DENIES Defendant's Anti-SLAPP Motion.

LEGAL STANDARD – Demurrer

A demurrer is a pleading used to test the legal sufficiency of other pleadings. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading (complaint, answer or cross-complaint). (Code Civ. Proc., § 422.10; see Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 (Donabedian).) It is not the function of the demurrer to challenge the truthfulness of the complaint; and for purposes of ruling on the demurrer, all facts pleaded in the complaint are assumed to be true. (Id. at pp. 993-994.)

A demurrer can be used only to challenge defects that appear on the face of the pleading under attack; or from matters outside the pleading that are judicially noticeable. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318; Donabedian, supra, 116

Cal.App.4th at p. 994.) No other extrinsic evidence can be considered. (*Ion Equip. Corp. v. Nelson* (1980) 110 Cal.App.3d 868, 881 [error for court to consider facts asserted in memorandum supporting demurrer]; see also *Afuso v. United States Fid. & Guar. Co.* (1985) 169 Cal.App.3d 859, 862, disapproved on other grounds in *Moradi-Shalal v. Fireman's Fund Ins. Cos.* (1988) 46 Cal.3d 287 [error to consider contents of release not part of court record].)

A demurrer can be utilized where the “face of the complaint” itself is incomplete or discloses some defense that would bar recovery. (*Guardian North Bay, Inc. v. Superior Court* (2001) 94 Cal.App.4th 963, 971-972.) The “face of the complaint” includes material contained in attached exhibits that are incorporated by reference into the complaint, or in a superseded complaint in the same action. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94; see also *Barnett v. Fireman's Fund Ins. Co.* (2001) 90 Cal.App.4th 500, 505 [“[W]e rely on and accept as true the contents of the exhibits and treat as surplusage the pleader's allegations as to the legal effect of the exhibits”].)

A demurrer can only be sustained when it disposes of an entire pleading, cause of action, or affirmative defense. (See Cal. Rules of Court, rule 3.1320, subd. (a); *Poizner v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119; *Kong v. City of Hawaiian Gardens Redev. Agency* (2003) 108 Cal.App.4th 1028, 1046-1047.)

PRELIMINARY ISSUES – Demurrer

Plaintiffs' Opposition to the Demurrer exceeds the 15-page limit provided under Rule 3.1113, subdivision (d), of the California Rules of Court. (Cal. Rules of Court, rule 3.1113, subd. (d).) An oversized memorandum is treated the same as a late-filed memorandum. (*Id.*, rule 3.1113, subd. (g).) The Court will still consider Plaintiffs' Opposition, but admonishes Plaintiffs to comply with the California Rules of Court going forward. (See Cal. Rules of Court, rule 3.1300, subd. (d); *Juarez v. Wash Depot Holdings, Inc.* (2018) 24 Cal.App.5th 1197, 1202 [court has discretion to consider late-filed opposition].)

Plaintiffs' Opposition to the Demurrer also contains some quotations without any direct or clear citations to authority. Specifically, Plaintiffs' Opposition reads, “One who has no lease but pays on a month-to-month basis becomes a tenant.” “Tenancies in property need not be created by written leases, and one may become a tenant by occupancy with consent.” (Opp., 16:15-17.) It appears the latter quotation was taken from *Mosser Companies v. San Francisco Rent Stabilization & Arb. Bd.* (2015) 233 Cal.App.4th 505, 516, but it fails to mention the omission of internal citations and simply places the word “and” in place of one of the citations. (See *ibid.* [“Tenancies in property need not be created by written leases. (Parkmerced Co. v. San Francisco Rent Stabilization & Arbitration Bd., supra, 215 Cal.App.3d at p. 495, 263 Cal.Rptr. 617.) One may become a tenant by occupancy with consent. (*ibid.*)”].)

Plaintiffs' Opposition to the Demurrer also appears to attribute the phrase “knew or should have known” to *Spinks v. Equity Residential Briarwood Apartments* (2009) 171 Cal.App.4th 1007, but no such language is found in that case. (See Opp., 12:1-5, 15:18-21.) The Court will discuss this further with Plaintiffs' counsel at the hearing on the Demurrer.

REQUEST FOR JUDICIAL NOTICE – Demurrer

The Court DENIES Defendant's request for judicial notice of the lease agreement attached to the Declaration of Dinicia Mendes filed concurrently with Defendant's Anti-SLAPP Motion. (Evid. Code, § 452; Demurrer, 3:28-4:6.)

DISCUSSION – Demurrer

Meet and Confer

The Court finds Defendant's efforts to meet and confer before bringing this Demurrer sufficient. (*Swain-Fall Decl.*, ¶ 1; Code Civ. Proc., § 430.41, subd. (a).)

Grounds for Demurrer

Defendant demurs to the First through Eighth Causes of Action under Code of Civil Procedure section 430.10, subdivisions (e) and (f) for failure to state facts sufficient to constitute a cause of action and uncertainty, respectively.

First Cause of Action - Violation of Civil Code § 789.3 (Unlawful Lockout)

To state a cause of action for violation of Civil Code section 789.3, the plaintiff must allege facts demonstrating that the defendant landlord acted “with intent to terminate the occupancy under any lease or other tenancy or estate at will, however created, of property used by a tenant as a residence, [and] willfully prevent the tenant from gaining reasonable access to the property by changing the locks, using a bootlock, or any similar method or device.” (Civ. Code, § 789.3.) Section 789.3 protects those occupying residential premises from specified landlord acts, including changing locks, undertaken with intent to oust the resident, and its reach extends to occupancy “under any lease or other tenancy or estate at will, however created.” (*Spinks v. Equity Residential Briarwood Apartments* (2009) 171 Cal.App.4th 1004, 1050 (*Spinks*)). “The word tenant as used in the penalty formula of section 789.3 refers to all the occupants of a rental unit. [Citation.]” (*Ibid.*, internal quotation marks omitted.)

Defendant argues the Civil Code section 789.3 claim fails because Plaintiff Courtney Smith was not a lawful tenant. Defendant contends the Complaint admits she did not continuously reside at the property and does not allege facts showing how Defendant would have been put on notice that she was a lawful occupant living with her mother. Defendant contends that Smith's assistance with utility payments while her daughter was in her mother's care and her assistance during her mother's illness do not equate to lawful residency.

In opposition, Plaintiffs argue the Complaint alleges the two required elements, i.e., that Defendant willfully prevented Smith from gaining reasonable access with intent to terminate her occupancy. Plaintiffs cite allegations that on March 19, 2025, management confronted Smith, asserted no one could remain, summoned law enforcement, forcibly removed the access fob, demanded removal of the vehicle sticker, and ignored a subsequent demand letter though rent was paid through the end of March 2025. Plaintiffs contend a tenancy may be created by occupancy with consent, not only by a written lease, and that Defendant had actual or constructive notice of Plaintiff Courtney's residency through its access-control application, logs, and surveillance. Plaintiffs further argue that section 789.3 bars self-help “however created,” so a dispute over tenancy status does not authorize a lockout.

In reply, Defendant argues that each claim depends on Plaintiff Courtney having been a lawful tenant rather than a visitor. Defendant contends the Complaint does not allege that she tendered rent, was added to the lease, or was ever acknowledged by Defendant as anything other than a visitor in her mother's unit. Defendant argues the Opposition's new narrative about the mobile application and the accompanying declarations cannot supply facts missing from the Complaint. Defendant further contends that Courtney's admission that her visitor authorization expired and had to be renewed repeatedly demonstrates visitor status, not tenancy.

The Court finds the Complaint alleges sufficient facts to state a cause of action for violation of Civil Code section 789.3. The Complaint alleges a willful and intentional exclusion of Plaintiffs from the property with intent to terminate Plaintiffs' occupancy, such as removing the fob, denying entry, and using law enforcement to effectuate the lockout. (Compl., ¶ 11.) Defendant's argument that Courtney was not a tenant fails because section 789.3 is broad and covers all occupants of the rental unit. (Civ. Code, § 789.3; *Spinks*, supra, 171 Cal.App.4th at p. 1050.)

Based on the foregoing, the Court OVERRULES the Demurrer to the First Cause of Action.

Second Cause of Action - Wrongful Eviction

To state a cause of action for wrongful eviction, the plaintiff must allege facts demonstrating the plaintiff's peaceable possession of the premises, and the defendant's forcible entry. The entering party's title or right of possession is no defense. (Spinks, supra, 171 Cal.App.4th at p. 1039.) A landlord may enforce a right to possession only by judicial process, not by self-help, and ownership or right of possession is not a defense to an action for forcible entry. (Id. at p. 1038.) By dispossessing an occupant in peaceable possession without resort to judicial process, a landlord is exposed to tort liability for wrongful eviction. (Id. at p. 1042.)

Defendant contends Plaintiff's eviction-based claims fail because the Complaint does not provide facts demonstrating Smith's residency in the unit. Defendant maintains that the facts described point to the daughter's residency with the grandmother rather than to Smith's own tenancy.

In opposition, Plaintiffs argue a landlord is liable for wrongful eviction when it evicts a tenant without complying with the unlawful detainer procedures of Code of Civil Procedure section 1161 et seq., and that self-help evictions are prohibited. Plaintiffs contend the Complaint alleges Defendant evicted Plaintiffs without notice or a court order. Plaintiffs cite allegations that management and law enforcement forcibly removed Smith and prohibited her return, leaving Plaintiff Jaylenn's toys, and schoolwork locked inside.

In reply, Defendant contends that the claim depends on a lawful tenancy the Complaint does not establish. Defendant asserts the only tenants Defendant acknowledged under the written lease, running from December 1, 2023 to March 3, 2025, were Carrie Zwanziger and Shoubin Yu.

The Court finds the Complaint alleges sufficient facts to state a cause of action for wrongful eviction. The Complaint alleges that Defendant removed Plaintiffs from the property without having first complied with the required unlawful detainer procedures, including failure to provide notice or obtain a court order. (Compl., ¶¶ 11, 21.) A party entitled to possession may recover possession through an unlawful detainer action, and not by means of self-help. (Nativi v. Deutsche Bank Nat'l Tr. Co. (2014) 223 Cal.App.4th 261, 273, 291, 311, fn. 13.)

Accordingly, the Court **OVERRULES** the Demurrer to the Second Cause of Action.

Third Cause of Action - Breach of Covenant of Quiet Enjoyment (Civil Code § 1927)

"In the absence of language to the contrary, every lease contains an implied covenant of quiet enjoyment, whereby the landlord impliedly covenants that the tenant shall have quiet enjoyment and possession of the premises. The covenant of quiet enjoyment 'insulates the tenant against any act or omission on the part of the landlord, or anyone claiming under him, which interferes with a tenant's right to use and enjoy the premises for the purposes contemplated by the tenancy.'" (Andrews v. Mobile Aire Estates (2005) 125 Cal.App.4th 578, 588 (Andrews), internal citations omitted.)

To plead a cause of action for breach of the covenant of quiet enjoyment, the plaintiff must allege facts demonstrating: (1) A lease agreement between plaintiff and defendant; (2) absence of language contrary to the implied covenant that tenant shall have quiet enjoyment and possession; (3) act or omission of the landlord, or anyone claiming under the landlord, which substantially interferes with a tenant's right to use and enjoy the premises for purposes contemplated; and (4) an applicable remedy, such as the tenant remains in possession and was damaged, or the tenant surrendered possession and is relieved of obligation to pay rent. (See Andrews, supra, 125 Cal.App.4th at pp. 588-591.)

The implied covenant is partially codified in Civil Code section 1927, which provides: "An agreement to let upon hire binds the letter to secure to the hirer the quiet possession of the thing hired during the term of the hiring, against all persons lawfully claiming the same." (Civ. Code, § 1927; Erlach, supra, 226 Cal.App.4th at p. 1299 ["every lease includes a covenant of quiet possession and enjoyment"].) "The implied covenant of quiet enjoyment implies a term in a contract, and a breach of the covenant gives rise to an action in contract." (Ginsberg v. Gamson (2012) 205 Cal.App.4th 873, 896 (Ginsberg).)

Defendant argues the breach of covenant of quiet enjoyment claim fails because Courtney was not a lawful tenant and the covenant is an implied covenant of the lease. Defendant states that even if Courtney moved out and returned to assist with caretaking, Defendant received a Notice to Vacate from a family member and an acknowledgment of the mother's death in the unit. Defendant requests judicial notice of the lease agreement, contending the Complaint concedes that the mother was the tenant when she died.

In opposition, Plaintiffs argue the implied covenant protects all lawful occupants, not only those named on the lease. Plaintiffs contend the Complaint alleges Plaintiffs possessed the property as tenants and that Defendant substantially interfered with their use and enjoyment by denying access, involving law enforcement to effectuate the eviction, removing the access fob, and removing community access via the vehicle sticker. Plaintiffs emphasize that these actions occurred fifteen days after the mother's death in the unit, during a period of intense grief.

In reply, Defendant contends that all of Plaintiffs' claims depend on Courtney's lawful tenancy, which the Complaint does not establish. Defendant argues that, in addition to rent, exclusive possession is necessary to satisfy the definition of a tenant, and that the Complaint alleges neither that Plaintiff paid rent nor that she held an exclusive right to possess the unit.

The Court finds the Complaint alleges sufficient facts to state a cause of action for breach of the covenant of quiet enjoyment. The Complaint alleges Plaintiffs possessed the property as tenants and that Defendant substantially interfered by denying access and removing access privileges. (Compl., ¶¶ 8-11.) For purposes of the demurrer, the allegations of the complaint are taken as true. The implied covenant of quiet enjoyment protects all "hirers," and not only formal "tenants." (Spinks, supra, 171 Cal.App.4th at pp. 1034-1035.)

Based on the foregoing, the Court **OVERRULES** the Demurrer to the Third Cause of Action.

Fourth Cause of Action - Intentional Infliction of Emotional Distress

To state a cause of action for intentional infliction of emotional distress, the plaintiff must allege facts demonstrating: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. (Hughes v. Pair (2009) 46 Cal.4th 1035, 1050 (Hughes).) Conduct is outrageous only when it is so extreme as to exceed all bounds of that usually tolerated in a civilized community, and the defendant must have engaged in conduct intended to inflict injury or engaged in with the realization that injury will result. (Christensen v. Superior Ct. (1991) 54 Cal.3d 868, 903.) The conduct must be directed at the plaintiff, or occur in the presence of a plaintiff of whom the defendant is aware. (Ibid.) Severe emotional distress means distress of such substantial or enduring quality that no reasonable person in a civilized society should be expected to endure it. (Hughes, supra, 46 Cal.4th at p. 1051.)

Defendant argues the intentional infliction of emotional distress (IIED) claim fails because the facts alleged do not establish extreme and outrageous conduct or intent to cause emotional distress. Defendant cites the three-element standard and the requirement that outrageous conduct exceed all bounds usually tolerated in a civilized community. Defendant relies on authority that even the denial of benefits to a terminally ill patient cannot, standing alone, be regarded as outrageous. Defendant contends that, having received an acknowledgment of the tenant's death and a Notice to Vacate, its actions weeks after the death were not extreme or egregious but an exercise of its right after informing occupants that no one could remain.

In opposition, Plaintiffs argue the Complaint pleads all four elements of intentional infliction of emotional distress. Plaintiffs contend Defendant confronted Courtney during active mourning, labeled her a "squatter," forcibly removed her access fob in front of witnesses, and had her escorted from the property in her slippers and pajamas, which is conduct alleged to exceed all bounds of civilized behavior. Plaintiffs emphasize that this occurred only fifteen days after Courtney provided round-the-clock end-of-life care to her mother, who died in her presence, and that Defendant acted with malice and conscious disregard knowing the actions would inflict severe distress on a grieving mother and her child. They argue wrongful eviction during a vulnerable period of life can support an IIED claim.

In reply, Defendant replies that the alleged conduct was undertaken in connection with its efforts to regain access to its property, not solely directed at Courtney with intent to cause distress, and that no threat of physical violence is alleged. Defendant argues most of the alleged activity occurred after Courtney was previously warned and after escalation, when Defendant contacted police to minimize the escalation. Defendant contends IIED requires more than a statutory violation, and that even tortious or criminal conduct will not necessarily support the tort. Defendant further argues that conduct undertaken in good faith to pursue one's own legal rights is privileged even if emotional distress results, invoking the privilege of Civil Code section 47.

The Court finds the Complaint alleges sufficient facts to state a cause of action for IIED as to Plaintiff Courtney, but not as to Plaintiff Jaylenn. The Complaint alleges that Plaintiff Courtney's mother died approximately two weeks before the confrontation that led to the Plaintiffs' removal from the property, which provides the inference that Courtney was in an emotionally vulnerable state, and that Courtney was subsequently removed from the property by law enforcement in a dramatic fashion. (Compl., ¶¶ 11-12.) However, the Complaint alleges Plaintiff Jaylenn was not physically present when the removal occurred. (Compl., ¶ 11.) IIED requires the conduct in question to be directed at the plaintiff or to have occurred in the presence of the plaintiff of whom the defendant is aware. (Christensen, supra, 54 Cal.3d at p. 903.) Since the Complaint alleges Jaylenn was not physically present or any other facts showing that Defendant's conduct was directed at Jaylenn, the Complaint fails to state claim for IIED for Jaylenn.

Accordingly, the Court **OVERRULES** the Demurrer to the Third Cause of Action as to Plaintiff Courtney. The Court **SUSTAINS** the Demurrer to the Third Cause of Action as to Plaintiff Jaylenn without leave to amend.

Fifth Cause of Action - Conversion

To state a cause of action for conversion, the plaintiff must allege facts demonstrating the plaintiff owns or has the right to possess certain personal property, the defendant acted in a manner inconsistent with plaintiff's property rights, and damages. (Regent All. Ltd. v. Rabizadeh (2014) 231 Cal.App.4th 1177, 1181.) Conversion is a strict liability tort; questions of the defendant's good faith, knowledge, and motive are ordinarily immaterial. (Welco Elecs., Inc. v. Mora (2014) 223 Cal.App.4th 202, 208.)

Defendant argues the conversion claim fails because it did not intend to deprive Courtney of her property. Defendant contends the Complaint inconsistently alleges that Defendant allowed Courtney and other family members access to the property for weeks following Courtney's mother's death, and that Courtney had at least fifteen days to remove items. Defendant argues the Complaint is unclear whether Defendant stored Courtney's items, how storage costs were incurred, or how the items were converted.

In opposition, Plaintiffs argue conversion requires ownership or a right to possession, the defendant's wrongful interference with that right, and damages. Plaintiffs contend the Complaint alleges Plaintiffs owned personal property, e.g., furniture, furnishings, clothes, toys, schoolwork, and other effects, located in the unit. Plaintiffs assert Defendant prevented access to the property and ignored the demand letter requesting retrieval, causing loss and damages.

In reply, Defendant argues that the alleged facts show it did not intend to wrongfully retain Smith's property. Defendant cites allegations that the police allowed Courtney's cousin to retrieve Courtney's purse and keys and that other relatives were later allowed to access the unit. Defendant also argues Courtney was previously warned and given sufficient opportunity to remove her belongings before she was no longer permitted to remain.

The Court finds the Complaint alleges sufficient facts to state a cause of action for conversion. The Complaint alleges that Plaintiffs' personal belongings were in the property, including Jaylenn's clothes, toys, and schoolwork, and Courtney's purse, keys, and furniture, and that Defendant failed to comply with Plaintiffs' demand letter releasing their personal property. (Compl., ¶¶ 11-12, 39.) Whether Defendant intended to wrongfully retain those items is irrelevant. (Welco Elecs., Inc. v. Mora, supra, 223 Cal.App.4th at p. 208.) Even then, the alleged unwillingness to return Plaintiffs' personal property after receiving a demand letter from their attorney is a sufficient allegation to show intent. (Compl., ¶ 12.)

Based on the foregoing, the Court OVERRULES the Demurrer to the Fifth Cause of Action.

Sixth Cause of Action - Unfair Business Practices (Business & Professions Code § 17200)

“The standard for finding an unfair practice in a consumer action is intentionally broad, thus allowing courts maximum discretion to prohibit new schemes to defraud. [Citation.] The test of whether a business practice is unfair ‘involves an examination of [that practice’s] impact on its alleged victim, balanced against the reasons, justifications and motives of the alleged wrongdoer. In brief, the court must weigh the utility of the defendant’s conduct against the gravity of the harm to the alleged victim [Citations.] ... [A]n unfair business practice occurs when that practice offends an established public policy or when the practice is immoral, unethical, oppressive, unscrupulous or substantially injurious to consumers. [Citation.]” (Candelore v. Tinder, Inc. (2018) 19 Cal.App.5th 1138, 1155, internal quotation marks omitted.)

Business and Professions Code section 17200 is written in the disjunctive and establishes three varieties of unfair competition — acts or practices that are unlawful, unfair, or fraudulent; under the “unlawful” prong, section 17200 borrows violations of other laws and treats them as independently actionable. (Cel-Tech Commc’ns, Inc. v. Los Angeles Cellular Tel. Co. (1999) 20 Cal.4th 163, 180.) A prevailing private plaintiff is generally limited to injunctive relief and restitution; damages, treble damages, and attorney fees are unavailable. (Id. at p. 179.) Restitution is the only monetary remedy expressly authorized by section 17203, and it is limited to restoring money or property in which the plaintiff has an ownership interest. (Korea Supply Co. v. Lockheed Martin Corp. (2003) 29 Cal.4th 1134, 1140.)

Defendant argues the unfair business practices claim fails because unfair business practices claims must state with reasonable particularity the facts supporting the statutory elements of the violation. Defendant contends Courtney failed to allege sufficient underlying facts to state a claim under the UCL. Defendant further argues that, because Courtney failed to demonstrate she was a lawful resident or known tenant, the derivative unfair-practices theory fails.

In opposition, Plaintiffs argue section 17200 prohibits unlawful, unfair, or fraudulent business practices, and that a violation of another statute such as Civil Code section 789.3 constitutes an “unlawful” practice. Plaintiffs contend the Complaint alleges Defendant engaged in unlawful and unfair practices by violating section 789.3, conducting a self-help eviction, and arbitrarily treating occupants by allowing other relatives access while excluding Plaintiffs. Plaintiffs assert these practices caused injury in fact and loss of money or property.

In reply, Defendant contends that UCL monetary relief is restitutionary only under section 17203, and that private plaintiffs cannot recover ordinary compensatory damages. Defendant argues the Complaint pleads no money or property that Defendant acquired from Courtney by means of unfair competition and that could be restored through the UCL. Defendant contends the UCL count merely incorporates the same alleged statutory violations pleaded elsewhere and adds no independent remedial basis. Relying on authority denying restitution where a landlord was not legally disentitled to the rent collected, Defendant argues the Complaint does not plead a cognizable UCL monetary remedy.

The Court finds the Complaint alleges sufficient facts to state a cause of action for unfair business practices. The Complaint alleges facts indicating that Defendant violated the law in effectuating Plaintiffs’ removal from the property, such as the Civil Code section 789.3 claim discussed above or engaging in self-help without having first gone through an unlawful detainer action. (Compl., ¶¶ 11, 21, 44.)

Accordingly, the Court OVERRULES the Demurrer to the Sixth Cause of Action.

Seventh Cause of Action - Negligence

To state a cause of action for negligence, the plaintiff must allege facts demonstrating: “(1) the defendant owed the plaintiff a legal duty, (2) the defendant breached the duty, and (3) the breach proximately or legally caused (4) the plaintiff’s damages

or injuries. [Citation.]” (Thomas v. Stenberg (2012) 206 Cal.App.4th 654, 662.) A landlord owes tenants a duty to exercise reasonable care, and a tenant injured by a breach of that duty may bring a negligence action; the landlord is not, however, subject to strict liability. (Peterson v. Superior Ct. (1995) 10 Cal.4th 1185, 1206.)

Defendant argues the negligence claim fails because Defendant used due care and its conduct was not improper. Defendant contends the Complaint admits Defendant allowed Courtney and her relatives weeks to collect belongings and provided notice before contacting police when occupants remained after Defendant received acknowledgment of the mother’s death. Defendant argues Courtney was not on the lease and the Complaint is void of facts showing Defendant was aware she resided at the property, so it did not owe or breach any duty by contacting police when the escalation occurred.

In opposition, Plaintiffs argue negligence requires duty, breach, causation, and damages, and that landlords owe tenants and lawful occupants a duty of reasonable care, including a duty to verify occupancy status before taking action affecting possessory rights. Plaintiffs contend the Complaint alleges Defendant breached that duty by failing to confirm residency despite indicators such as mobile-app credentials, daily access logs, caregiving presence, and express notice, by resorting to self-help, and by improperly involving law enforcement. Plaintiffs assert this negligence was a substantial factor in causing their harm.

In reply, Defendant contends that Courtney was not a tenant and was never acknowledged as one, and that she improperly seeks to attach her residency to her daughter’s. Defendant states that its concurrently filed anti-SLAPP motion provides the lease and the Notice to Vacate received due to the mother’s death.

The Court finds the Complaint alleges sufficient facts to state a cause of action for negligence. The Court of Appeal in Spinks explicitly rejected Defendant’s argument regarding the lack of tenant status. “Defendants first argue that they owed plaintiff no legal duty, because she was not their tenant. That argument misses the point. As discussed above, the law imposes a duty on landlords not to disturb an occupant’s possession except by legal process.” (Spinks, supra, 171 Cal.App.4th at p. 1047.) The Complaint alleges Plaintiff was an occupant of the property. (Compl., ¶¶ 8-11.) This is sufficient to impose a duty on Defendant not to disturb Plaintiffs’ possession except by legal process. (Spinks, supra, 171 Cal.App.4th at p. 1047.)

Accordingly, the Court **OVERRULES** the Demurrer to the Seventh Cause of Action.

Eighth Cause of Action - Violation of Pomona Rent Stabilization Ordinance (Just Cause Eviction Protections)

Subdivision (b) of section 6 of Pomona Rent Stabilization Ordinance No. 4320 provides as follows:

(b) Cause Required to Terminate Tenancy. No Landlord may terminate a residential tenancy of a Tenant occupying a Rental Unit unless the Landlord can demonstrate all of the following:

(1) The Landlord served a Notice of Termination on the Tenant in accordance with California Code of Civil Procedure Section 1162; and

(2) The Landlord has not accepted and will not accept Rent or any other consideration in return for the continued use of the Rental Unit beyond the term of the terminated tenancy in compliance with California Civil Code Sections 1945, 1946, and 1946.1; and

(3) The termination qualifies as a For Cause or No Fault termination; and

(4) The Landlord has submitted to the City of Pomona, 505 South Garey Avenue, Pomona, CA 91766 via certified mail, return receipt requested, within five (5) calendar days after service on the Tenant, a true and accurate copy of the Notice of

Termination, with proof of such service on the tenant(s) attached. Evidence of proof of service may include receipt of delivery of the notice by the Tenant or a sworn statement by the Landlord under penalty of perjury under the laws of the State of California that confirms service of the Notice of Termination on the Tenant in accordance with California Code of Civil Procedure Section 1162. Landlord shall submit proof of service to the City as evidence that Landlord has complied with this Subsection. If the Notice of Termination was served on Tenant prior to the effective date of this Urgency Ordinance, Landlord shall submit to the City the documentation required by this Subsection within five (5) days of the effective date of this Urgency Ordinance.

A Tenant may challenge the validity of a Landlord's legal action to terminate a tenancy, including a suit for unlawful detainer, based on a Landlord's failure to comply with any or all of the requirements included in Subsection, including the Landlord's failure to provide the City with a true and accurate copy of the Notice of Termination with proof of service. The City will accept copies of all Notices of Termination received in accordance with this Section and, upon written request of a Tenant who verifies residency in the Covered Rental Unit that is the subject of the Notice of Termination, and/or upon the written request of the Landlord who submitted the Notice of Termination, the City will endeavor to provide confirmation to the requesting party that such Notice of Termination was received. Notwithstanding the foregoing, the City assumes no responsibility for errors or omissions in its response, and the City's response or lack thereof shall in no way create a City duty, impose an obligation on the City with respect to the requirements of this Section, or otherwise lead to legal or equitable liability on behalf of the City.

(Pomona Rent Stabilization Ordinance No. 4320, § 6, subd. (b).)

Subdivision (c) of section 6 of Pomona Rent Stabilization Ordinance No. 4320 provides as follows:

(c) For Cause Termination. If a Landlord can show any of the following circumstances with respect to a termination of tenancy, the termination will qualify as a for cause termination:

(1) Tenant failed to pay Rent within three (3) days of receiving written notice from the Landlord demanding payment as provided in California Code of Civil Procedure Section 1161(2); or

(2) Tenant violated a Material Rental Agreement Term as provided in California Code of Civil Procedure Section 1161(3) and did not cure such violation within ten (10) days after receiving written notice from the Landlord of such violation; or

(3) Tenant has continued to refuse, after Landlord has provided a written request, reasonable access to the Rental Unit by the Landlord in accordance with California Civil Code Section 1954;

(4) Tenant, or Tenant's guest or invitee, is creating or maintaining a nuisance in, or is causing damage to, the Rental Unit, or the appurtenances thereof, or to the common areas of the rental complex, or creating an unreasonable interference with the comfort, safety or enjoyment of any other residents of the rental complex within one thousand (1,000) feet outside the boundary line of the rental complex....

(5) Tenant, or Tenant's guest or invitee, is using the Rental Unit, the common areas of the Rental Unit or rental complex containing the Rental Unit, or an area within one thousand (1,000) feet outside the boundary line of the rental complex, to be used for any illegal purpose....

Subdivision (b) of section 30-576 of Pomona Rent Stabilization Ordinance No. 4359 provides as follows:

(b) Cause required to terminate tenancy. No Landlord may terminate a residential tenancy of a Tenant occupying a Covered Rental Unit unless the Landlord can demonstrate all of the following:

(1) The Landlord served a Notice of Termination on the Tenant in accordance with California Code of Civil Procedure section 1162; and

(2) The Landlord has not accepted and will not accept Rent or any other consideration in return for the continued use of the Covered Rental Unit beyond the term of the terminated tenancy in compliance with California Civil Code sections 1945, 1946, and 1946.1; and

(3) The termination qualifies as At-fault Just Cause under subdivision (c) of this section or No-fault Just Cause under subdivision (d) of this section; and

(4) The Landlord has timely submitted to the Department a true and accurate copy of the unlawful detainer action filed in court, including the court name, case number, and proof of service within ten (10) calendar days after service on the Tenant.

(Pomona Rent Stabilization Ordinance, No. 4359, § 30-576, subd. (b).)

Subdivision (c) of section 30-576 of the Pomona Rent Stabilization Ordinance No. 4359 provides as follows:

(c) At-fault Just Cause termination. If a Landlord can show any of the following circumstances with respect to a termination of tenancy, the termination will qualify as an At-fault Just Cause termination:

(1) Tenant failed to pay Rent owed under the Rental Agreement within three (3) days of receiving written notice from the Landlord demanding payment as provided in California Code of Civil Procedure section 1161(2);

(2) Tenant violated a material term of the Rental Agreement and did not cure the violation as provided in California Code of Civil Procedure section 1161(3) after receiving written notice from the Landlord of such violation;

(3) Tenant has continued to refuse, after Landlord has provided a written request, reasonable access to the Rental Unit by the Landlord in accordance with California Civil Code section 1954;

(4) Tenant, or Tenant's guest or invitee, is creating or maintaining a nuisance in, or is causing damage to, the Rental Unit, or the appurtenances thereof, or to the common areas of the rental complex, or creating an unreasonable interference with the comfort, safety or enjoyment of any other residents of the rental complex within 1,000 feet outside the boundary line of the rental complex....

(5) Tenant, or Tenant's guest or invitee, is using the Rental Unit, the common areas of the Rental Unit or rental complex containing the Rental Unit, or an area within 1,000 feet outside the boundary line of the rental complex, to be used for any illegal purpose....

(Pomona Rent Stabilization Ordinance, No. 4359, § 30-576, subd. (c).)

Ordinances are construed using the same rules of interpretation applicable to statutes. (Lyles v. Sangadeo-Patel (2014) 225 Cal.App.4th 759, 764 (Lyles).)

Defendant argues the Pomona Rent Stabilization Ordinance claim fails because statutory causes of action must be pleaded with particularity and that the ordinance claim fails for the same reasons as the other claims. Defendant contends Courtney was a visitor and that all facts described in the Complaint point to her daughter Jaylenn's residency with the grandmother rather than to Courtney's own residency. Defendant argues the claim fails because the Complaint does not provide underlying facts demonstrating Courtney's residency in the unit.

In opposition, Plaintiffs argue the Pomona Rent Stabilization Ordinance, including Urgency Ordinance No. 4320 and Ordinance No. 4359, requires just cause for eviction and specific procedures, with remedies including relocation assistance, damages, and attorney fees. Plaintiffs contend the Complaint alleges the property is subject to the ordinance, that Defendant evicted Plaintiffs without just cause or required notices and procedures, and that the actions were willful. Plaintiffs assert entitlement to actual damages, relocation assistance, treble damages where applicable, and attorney fees.

In reply, Defendant contends that both Ordinance No. 4320 and Ordinance No. 4359 define a "tenant" as a person entitled, by a rental agreement, by sufferance, or by law, to the use or occupancy of a rental unit. Defendant argues that an occupant who does not have the right to exclusive possession and the concomitant obligation to pay rent does not meet the definition of a tenant, and that the Complaint alleges neither rent payment nor an exclusive right to possess the unit.

The Court finds the Complaint alleges sufficient facts to state a cause of action for violation of the Pomona Rent Stabilization Ordinance. Pomona Rent Stabilization Ordinance No. 4320 (also known as Urgency Ordinance No. 4320), which was in effect during Plaintiffs' alleged eviction in March 2025, broadly defines "tenant" as "a person entitled, by Rental Agreement, or by sufferance, or by this Code or State or federal law, to the use or occupancy of any Rental Unit." (Pomona Rent Stabilization Ordinance No. 4320, § 4.) As noted herein, the Complaint alleges sufficient facts showing that Plaintiffs were occupants of the property at the time of the eviction. (Compl., ¶¶ 8-11.) Rent Stabilization Ordinance No. 4320 required, among other things, service of a notice of termination on the tenant per Code of Civil Procedure section 1162, plus a filing of a copy of the notice with the City of Pomona within five days. (Rent Stabilization Ordinance No. 4320, § 6, subds. (b)(1), (b)(4).) The Complaint alleges Defendant were evicted without just cause by Defendant not providing required notices or following proper procedures and engaging in self-help. (Compl., ¶¶ 11, 53.)

Based on the foregoing, the Court **OVERRULES** the Demurrer to the Eighth Cause of Action.

LEGAL STANDARD – Motion to Strike

"Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof, but this time limitation shall not apply to motions specified in subdivision (e)." (Code Civ. Proc., § 435, subd. (b)(2).) "The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Id., § 436.)

PRELIMINARY ISSUES – Motion to Strike

Plaintiffs filed two Opposition memorandums to the Motion to Strike. The Court assumes the second Opposition is the one Plaintiffs intend to rely on and will therefore base its tentative ruling on the second Opposition.

As noted above in the Demurrer, Plaintiffs' Opposition to the Motion to Strike also appears to attribute the phrase "knew or should have known" to *Spinks v. Equity Residential Briarwood Apartments* (2009) 171 Cal.App.4th 1007, but no such language is found in that case. (See Opp., 10:3-7.)

DISCUSSION – Motion to Strike

Meet and Confer

The Court finds Defendant's efforts to meet and confer before bringing this Motion to Strike. (Swain-Fall Decl., ¶ 1; Code Civ. Proc., § 435.5, subd. (a).)

Punitive Damages

A claim for punitive damages is subject to a motion to strike when the allegations fail to rise to the level of malice, oppression, or fraud necessary under Civil Code section 3294. (*Turman v. Turning Point of Central California, Inc.* (2010) 191 Cal.App.4th 53, 64.)

Defendant moves to strike Plaintiffs' prayer for punitive damages under Code of Civil Procedure sections 435 and 436, contending the Complaint fails to allege specific facts showing malice, oppression, or fraud as required by Civil Code section 3294. Defendant argues that conclusory allegations of malice, oppression, or fraud are insufficient and that the pleading must include specific factual allegations of such conduct. Defendant asserts the Complaint does not establish Plaintiff Courtney Smith's lawful tenancy or that Defendant knew she was a lawful tenant, noting she was not on her mother's lease and did not consistently reside at the Property. Defendant further contends the Complaint fails to allege an intent to harm, emphasizing that it waited approximately two weeks after the death of Smith's mother, allowed family members to access the unit to collect belongings, and acted only after receiving the family's acknowledgment of the death. Defendant argues that because no facts show its awareness that Courtney claimed to be a tenant, its actions could not have consciously disregarded her alleged rights, and the punitive damages request should be stricken without leave to amend.

In oppositions, Plaintiffs argue that the Complaint alleges ultimate facts establishing all three bases for punitive damages under Civil Code section 3294 and that the Court must accept those allegations as true on a motion to strike. Plaintiffs contend Defendant conducted a self-help eviction of a grieving single mother and her 11-year-old daughter fifteen days after the mother's death, despite actual notice of their residency through Defendant's proprietary security system and Courtney's express statements. Plaintiffs argue malice is shown because Defendant, with actual knowledge of the tenancy, labeled Courtney a "squatter" to law enforcement, removed her access credentials, ignored a demand letter, and bypassed statutory eviction procedures under Code of Civil Procedure section 1161 et seq. and Civil Code section 789.3. Plaintiffs contend oppression is established by the cruel and unjust hardship of a public, humiliating lockout during acute grief, and that fraud is established by Defendant's misrepresentation of Courtney's status and concealment of material facts establishing her residency. Plaintiffs also argue that California law imposes on landlords an affirmative duty to investigate occupancy before evicting, and that Defendant's failure to investigate despite actual notice demonstrates malice.

In reply, Defendant contends that Plaintiffs' Opposition raises a new argument, i.e., that Smith's use of visitor access and a fob elevated her from visitor to tenant, but that such allegations, without more, do not support punitive damages under Civil Code section 3294. Defendant argues it does not ask the Court to weigh evidence, but only to apply California pleading standards to the punitive remedy Plaintiffs chose to seek. Defendant contends that "despicable conduct" is a substantive limitation requiring conduct that is base, vile, or contemptible, and not conduct that is merely negligent, legally mistaken, overzealous, or callous. Defendant argues that Plaintiffs' allegations that Defendant acted with malice and conscious disregard are conclusory and are countered by the Complaint's own allegations that Defendant warned Plaintiff beforehand, waited fifteen days after the mother's death, and allowed family members to retrieve remaining property. Defendant maintains that the alleged conduct amounts at most to negligence, that no ultimate facts establish malice, oppression, or fraud, and that leave to amend should be denied because the pleading defects are substantive and incurable.

The Court finds Defendant's Motion to Strike unavailing. Punitive damages are available for wrongful eviction and intentional infliction of emotional distress (IIED). (*Spinks v. Equity Residential Briarwood Apartments* (2009) 171 Cal.App.4th 1004, 1039.) Given the Court overruled Defendant's Demurrer as to Plaintiffs' wrongful eviction claim and as to Courtney's IIED claim, the Court also finds the Complaint alleges sufficient facts to state claims for punitive damages. (Compl., ¶¶ 8-15, 20-24, 34-37.)

Based on the foregoing, the Court DENIES the Motion to Strike.

CONCLUSION

The Court DENIES Defendant Prime Residential Management GP, LLC dba The Gabriel Apartments' Special Motion to Strike Claims in the Complaint Pursuant to Code of Civil Procedure § 425.16 (Anti-SLAPP).

The Court SUSTAINS Defendant Prime Residential Management GP, LLC dba The Gabriel Apartments' Demurrer to Plaintiff Jaylenn Leeann Cortes' Fourth Cause of Action for intentional infliction of emotional distress without leave to amend. The Court OVERRULES Defendant Prime Residential Management GP, LLC dba The Gabriel Apartments' Demurrer to Plaintiffs' Complaint in all other respects.

The Court DENIES Defendant Prime Residential Management GP, LLC dba The Gabriel Apartments' Motion to Strike Plaintiffs' Complaint.

Defendant Prime Residential Management GP, LLC dba The Gabriel Apartments is ordered to file an Answer to the Complaint within 10 calendar days.

Plaintiffs are ordered to give notice of the Court's ruling within five calendar days of this order.

[1] Defendant's Reply raises for the first time a fallback request that "[i]f any claim survives on non-communicative related conduct, Defendant request [sic] the Court strike all allegations arising from protected communications, including statements to Plaintiff and law enforcement, including any demanded relief based on those communications." (Reply, 5:9-12.) Given that Defendant did not raise this issue in the moving papers, the Court disregards it. (See generally, Motion; see *Alfaro v. Cmty. Hous. Improvement Sys. & Plan. Assn., Inc.* (2009) 171 Cal.App.4th 1356, 1393, fn. 23 ["The general rule is that points raised for the first time in a reply brief will not be considered unless good cause is shown for the failure to present them before." [Citation.]]).) Notwithstanding, Defendant's Reply still fails to identify the specific protected allegations supplying each claim required by Baral and Bonni. (Baral, *supra*, 1 Cal.5th at p. 398; Bonni, *supra*, 11 Cal.5th at p. 1011.)